No. 17A440. DUNN, COMMISSIONER, ALABAMA DEPARTMENT OF CORRECTIONS, ET AL. *v.* MCNABB. Application to vacate the injunction entered by the United States District Court for the Middle District of Alabama on October 16, 2017, presented to JUSTICE THOMAS, and by him referred to the Court, granted. "[I]nmates seeking time to challenge the manner in which the State plans to execute them must satisfy all of the requirements for a stay, including a showing of a significant possibility of success on the merits." *Hill* v. *McDonough*, 547 U. S. 573, 584 (2006). The All Writs Act does not excuse a court from making these findings. Because the District Court enjoined respondent's execution without finding that he has a significant possibility of success on the merits, it abused its discretion. We accordingly vacate the injunction. JUSTICE BREYER and JUSTICE SOTOMAYOR would deny the application to vacate the injunction.

Certiorari Denied

No. 17–6400. MCNABB *v.* DUNN, COMMISSIONER, ALABAMA DEPARTMENT OF CORRECTIONS, ET AL. C. A. 11th Cir. Certiorari denied.

OCTOBER 20, 2017

Dismissal Under Rule 46

No. 17–247. TRIPLE CANOPY, INC. *v.* UNITED STATES ET AL. C. A. 4th Cir. Certiorari dismissed under this Court's Rule 46.1. Reported below: 857 F. 3d 174.

OCTOBER 24, 2017

Vacated and Remanded After Certiorari Granted

No. 16–1540. TRUMP, PRESIDENT OF THE UNITED STATES, ET AL. *v.* HAWAII ET AL. C. A. 9th Cir. [Certiorari granted, 582 U. S. 571.] We granted certiorari in this case to resolve a challenge to the temporary suspension of entry of aliens and refugees under §§ 2(c) and 6 of Executive Order No. 13780. Because those provisions of the Order have "expired by [their] own terms," the appeal no longer presents a "live case or controversy." *Burke* v. *Barnes*, 479 U. S. 361, 363 (1987). Following our established practice in such cases, the judgment is therefore vacated, and the case is remanded to the United States Court of Appeals for the Ninth Circuit with instructions to dismiss as moot the challenge to Exec-